

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3588 of 2022

Applicant :- M/S Prasoon Kumar And Prashant Kumar And Another

Opposite Party :- Manoj Kumar Agrawal, Engineer And 3 Others

Counsel for Applicant :- P.K. Upadhyay, Kalpna Upadhyay, Vikram Yadav

Hon'ble Rohit Ranjan Agarwal, J.

Learned counsel for the applicants is directed to serve a copy of contempt application upon Sri Krishna Agrawal, learned counsel, who had appeared during the writ proceedings, within forty eight hours, who shall seek instructions in the matter as to why the order dated 27.05.2022 passed in Writ-C No. 1135 of 2022 has not been complied till date.

Put up this case, as fresh, on 03.08.2022.

Order Date :- 6.7.2022

Shekhar

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Hon'ble Rohit Ranjan Agarwal, J.

On 06.07.2022, counsel for applicant was directed to serve copy of contempt application upon Sri Krishna Agrawal, learned counsel who had appeared on behalf of opposite party during writ proceedings.

Today, when the case was taken up, Sri Upadhyay, learned counsel for the applicant informed the Court that Sri Krishna Agrawal has refused to accept notice on behalf of opposite party.

It is alleged that the order of writ Court has been violated.

From a perusal of the record, a *prima facie* case for contempt is made out.

Issue notice to opposite party nos. 1 to 4 returnable within a month.

List this matter on the date fixed in the notice.

However, one more opportunity is granted to the opposite party nos. 1 to 4 to comply with the order within a month and file an affidavit of compliance within the aforesaid period or else charges may be framed after summoning the noticee.

The noticee need not appear at this stage.

The office may send a copy of this order along with the notice.

Order Date :- 3.8.2022

V.S.Singh

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Counsel for Opposite Party :- Manoj Kumar Srivastava

Hon'ble Rohit Ranjan Agarwal, J.

The writ Court on 27.05.2022 while disposing of Writ-C No.11135 of 2022 had required the applicant to submit objection under Para 6.5 of U.P. Electricity Supply Code, 2005 which was to be decided by the opposite party.

An affidavit of compliance has been filed by Sri M.K.Srivastava, learned counsel for the opposite party in which it has been stated that the objections were decided on 11.07.2022, copy of which has been brought on record as Annexure 1 to the affidavit of compliance.

As the order of the writ Court was only to the extent to decide the objection, which the opposite party has done, nothing remains to be adjudicated in this matter.

The contempt application stands dismissed.

The contempt notice stands discharged.

Order Date :- 11.11.2022

Kushal